

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ZIMBABWE

## *Complete Community Opposition How-To*

*This guide is built around Zimbabwe's sharpest lever — the 2013 Constitution's justiciable right to a clean environment and its unusually broad rule of standing, which lets any person or NGO take a case to court in the public interest — and it names the bodies and terms you'll meet (the Constitution and the High Court, public-interest litigation, the EIA and EMA, ZimParks, traditional leaders) in plain words. It is honest that this is one of the harder governments in the region, and puts care and safety through the fight.*

## INTRODUCTION & FRAMEWORK

In 2020 the government quietly granted two Chinese companies special grants to explore for coal inside **Hwange National Park** — Zimbabwe's largest, home to more than forty thousand elephants, black rhino, and painted dogs. But a conservation body's team spotted the geologists at work, and ZimParks rangers arrested them; a public outcry erupted; and the **Zimbabwe Environmental Law Association (ZELA)**, with a Hwange resident, rushed an urgent application to the **High Court**, arguing that mining in a national park breached the Constitution's duty to prevent ecological degradation and that the grant had skipped the required environmental assessment. Within days the government **reversed course and banned mining in all national parks "with immediate effect,"** promising to cancel the titles it had granted, and banning riverbed and alluvial mining too. A destructive project inside an irreplaceable park was stopped, because the public raised the alarm and a lawyer turned the Constitution into a weapon.

The Zimbabwe Environmental Law Association (ZELA), with a Hwange resident, turned the Constitution into a weapon against coal mining in Hwange National Park — and that toolkit is genuinely strong, unusual for the region. The **2013 Constitution's right to a clean environment** is **justiciable**, and its **unusually broad rule of standing** lets any person — or a lawyer or NGO acting in the public interest — take a case to court on a community's behalf. A project needs an **environmental impact assessment (EIA)** through the **Environmental Management Agency (EMA)**. **National parks and protected areas** carry protection, guarded by **ZimParks**. The **High Court** enforces these; lawful advocacy and litigation are the tools. And **traditional leaders**, community mobilisation, and national and international attention amplify a case. But these tools have real limits, and this guide states them plainly. The Hwange ban was **announced, not written into law** — a statement after a Cabinet meeting, which is why campaigners kept pressing to see it enforced; in Zimbabwe, a win must often be **fought into enforcement**. This is **one of the harder governments in the region**, where the space to oppose the powerful is real but constrained, and confrontation can carry risk. So aim for what these tools can deliver — a project stopped, an assessment enforced, a grant cancelled, a ban won and then made real — and press a win all the way into enforcement, with care for your people.

## The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of grants and approvals, and a chain breaks at its weakest link. A Zimbabwean fight turns on the **Constitution's environmental right** (which anyone can enforce in court); on the **EIA and EMA**; on **protected-area status** guarded by ZimParks; and on **public mobilisation and attention** that make a project a political liability. Every one of those is a link you can grab — and the

constitutional right, with its broad standing, is the sharpest. **Find the one closest to your hand and pull.**

## Be Honest About Which Fight You're In

Before you spend months on this, work out your real situation:

- **If it degrades the environment, the Constitution's right and broad standing are your sharpest lever** — a lawyer or NGO can turn it into a court case fast, as ZELA did at Hwange.
- **If it skipped the EIA, that's a clear breach** — the assessment is required, and its absence is a strong ground.
- **If it's in a national park or protected area, that protection bites** — Hwange's status was decisive.
- **If the government is behind it, don't assume it's hopeless, but be careful** — Hwange proved even this government can be turned by the Constitution and the public, but a win must be pressed into enforcement, and confrontation carries risk.

Read the whole guide once before you move. Two habits run through it: **turn the Constitution into a weapon through public-interest litigation, backed by the public, and press every win all the way into enforcement** — because in Zimbabwe an announcement is not yet a law. That's how Hwange was saved.

## HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

### Who Actually Decides

The government grants mining and development rights, but a project needs an **EIA** through the **EMA**, and it is bound by the **Constitution's right to a clean environment**, enforceable — by anyone, under the broad standing rule — in the **High Court**. National parks and protected areas carry protection guarded by **ZimParks**. And **traditional leaders** and community structures hold local authority. Know which of these you can reach — the constitutional right and the courts are the sharpest.

### How a Project Moves — and Where You Jump In

**The grant and the EIA.** A project needs its grant and its EIA. *Your opening:* a grant that skipped the EIA, or degrades the environment, is unlawful.

**The constitutional right.** *Your opening — the Hwange lever:* the Constitution's environmental right, enforceable by anyone in the public interest, turned into an urgent High Court application.

**Protected-area status.** *Your opening:* a project in a national park breaches its protection — decisive at Hwange.

**The public and the traditional leaders.** *Your opening:* the alarm raised, the public mobilised, the traditional leaders engaged, so the project becomes a political liability.

### Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — including any foreign company, whose lawfulness and reputation you can test. **What it skipped or breached** — the EIA, the protected-area rules, the environmental right: whatever's missing is the soft spot. **What harm it does** — because documented ecological degradation grounds the constitutional case.

## Who's Supposed to Be Watching

Each is an ally or an arena. The **EMA** runs the EIA. **ZimParks** guards the protected areas. The **High Court** enforces the Constitution — at the suit of anyone in the public interest. And Zimbabwe's **environmental-law organisations (like ZELA), conservation bodies, traditional leaders, and press** are the forces that reach furthest — the combination that stopped the Hwange coal.

## QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the constitutional right or a protected area is engaged, whether the EIA was skipped, and whether the public and the courts can be moved — under a hard government.

| What you do                                             | Roughly works | How long     | Cost/Risk        | What "works" means                  |
|---------------------------------------------------------|---------------|--------------|------------------|-------------------------------------|
| Just gather documents                                   | 5–10%         | weeks        | low              | The base for everything else        |
| Public-interest litigation (constitutional right)       | 35–60%        | days–months  | mod              | Project stopped/suspended (Hwange)  |
| Attack a skipped EIA                                    | 25–50%        | weeks–months | low              | Grant unlawful; halted              |
| Invoke protected-area status                            | 30–55%        | weeks–months | low              | Project barred from the park        |
| Raise the alarm + public mobilisation                   | 30–55%        | days–weeks   | low– <b>risk</b> | Political liability; a reversal     |
| Traditional leaders + community                         | 25–50%        | weeks–months | low              | Local authority engaged             |
| National + international attention                      | 30–55%        | weeks–months | low              | Pressure; a foreign company exposed |
| <b>Everything together (constitution, park, public)</b> | <b>45–70%</b> | days–months  | mod              | Stopped, reversed, banned           |
| Making a win stick (enforcement)                        | 25–50%        | months–years | mod              | Announcement turned into law        |

The levers that move the needle most are **public-interest litigation on the constitutional right, a skipped EIA, and protected-area status**, backed by **public mobilisation and attention**. Hwange shows the ceiling (a coal grant inside the park reversed within days, a national ban announced) and the honest floor (the ban was announced, not enacted, and had to be fought into enforcement). So aim for a project stopped, an EIA enforced, a grant cancelled, a ban won — and then press it into law.

*On cost and risk: raising the alarm, attacking the EIA, and public-interest litigation are affordable, and organisations like ZELA carry the legal work; but under a hard government, mobilisation carries some risk, and a win must be pressed into enforcement. The great strength is a justiciable Constitution with broad standing; the great requirements are speed, the public alarm, and the persistence to make a win real.*

## STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this skipped EIA, this park breach, this environmental-right violation — is strong. Answer five questions in writing.

**1. What is it, and who's behind it?** Name the project, the company, any foreign parent, and its lawfulness and reputation.

**2. Where is it, and what does it touch?** Map it over **national parks, protected areas, rivers, communities, and wildlife**. **A protected area and ecological degradation are your sharpest levers** — Hwange's park status and its elephants were decisive.

**3. What did it skip or breach?** The **EIA**, the protected-area rules, the environmental right — whatever's missing is the soft spot, and grounds an urgent case.

**4. What stage is it at, and is it acting now?** Is a grant issued? Is exploration or work underway (raise the alarm and litigate fast)? Speed matters — Hwange was won in days.

**5. Who can act — a lawyer, the public, the traditional leaders?** An environmental-law organisation (like ZELA) that can litigate on the broad standing rule; the public to raise the alarm; the traditional leaders and conservation bodies. Hwange joined all of these.

**What this looks like in real life.** A grant lets a foreign company explore inside a national park, skipping the EIA. The five questions yield: a foreign company; the park and its wildlife (your levers); the skipped EIA and the environmental-right breach; exploration underway (act fast); and a lawyer, the public, and the traditional leaders to act. That's the Hwange pattern — raise the alarm, litigate the constitutional right fast, and press any win into enforcement.

## STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and at Hwange, proof of the breach won in days. Build it in three layers, fast.

**Layer one: the breach.** Document what the project **skipped or breached** — the missing EIA, the protected-area rules, the environmental right — and, where you can, catch it in the act (the geologists at work, the grant document). This is the heart of an urgent constitutional case.

**Layer two: the ecological harm.** Document the **ecological degradation** — the park, the wildlife, the rivers, the communities at risk — with dated, located photographs and evidence, because the Constitution's duty to prevent degradation is your ground.

**Layer three: the map of harm and status.** Lay the project over the protected area and the harm, so the park breach and the degradation are undeniable. Walking into the High Court, the EMA, ZimParks, or the public with the skipped EIA, the protected status, and the documented harm is what makes them act — fast.

## WHAT TO GATHER, AND WHERE TO FIND IT

- **The grant and the EIA status** — from the government, the EMA, and the company's materials.
- **The protected-area status** — the national park or reserve rules.
- **The ecological harm** — dated photographs and evidence of the park, wildlife, rivers, and communities at risk.
- **Evidence of the breach in the act** — the exploration, the geologists, the grant document.

- **Named testimony** — of residents, rangers, and conservation bodies.

## STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a lawyer, the public, and the traditional leaders give you the fast, hard-to-ignore power Hwange showed. Build in four moves.

**Get an environmental-law organisation early — and fast.** Hwange was won because ZELA turned the Constitution into an urgent High Court application within days. Reach an organisation that can litigate on the broad standing rule, quickly.

**Raise the alarm and mobilise the public.** The Hwange geologists were spotted and the public outcry erupted. Raise the alarm loudly, mobilise the public, so the project becomes a political liability — carefully, under a hard government.

**Engage the traditional leaders and conservation bodies.** Traditional leaders hold local authority; conservation bodies and rangers can find and document the breach, as they did at Hwange.

**Build to last, and press for enforcement.** The Hwange ban was announced, not enacted, so the fight continued into enforcement. Build clear roles, a secure archive, a way to decide together, a care-for-safety plan under a hard government, and the persistence to make an announced win real in law.

## STEP 4: THE CONSTITUTION, THE COURTS & THE EIA

Zimbabwe's sharpest lever is the justiciable Constitution, wielded through public-interest litigation.

### The Constitutional Right and Broad Standing — the Sharpest Lever

The Hwange lever: the **2013 Constitution's right to a clean environment** is justiciable, and its **broad standing** lets any person, lawyer, or NGO take a case to court in the public interest. Turn it into an **urgent High Court application**, as ZELA did — arguing the duty to prevent ecological degradation and any skipped assessment. This is the country's sharpest weapon, and it works fast.

### The EIA and the EMA

A project needs an **EIA** through the **EMA**. A grant that **skipped the EIA** is unlawful — a clear, strong ground, and it was central at Hwange. Demand it, and attack its absence or its defects.

### Protected Areas and ZimParks

A project in a **national park or protected area** breaches its protection, guarded by **ZimParks**. Hwange's park status was decisive. Invoke it where it applies.

### Making the Win Stick

The hard Zimbabwean truth: a win is often **announced, not enacted**. After a favourable ruling or reversal, keep pressing — for the titles to be cancelled, the ban written into law, the assessment enforced. In Zimbabwe, a win must be fought into enforcement.

### The Honest Limits

Straight talk: the constitutional right, the EIA, and protected-area status are powerful and fast, but this is a hard government, a win must be pressed into enforcement, and mobilisation carries some risk. So use the

strong tools — the constitutional right and broad standing, the EIA, the protected areas, the public — press every win into enforcement, mind your safety, and count a project stopped, an EIA enforced, a grant cancelled, and a ban won and enacted as wins.

## TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

**Degradation becomes a constitutional breach.** Not "we oppose the mine" but *"this breaches the Constitution's duty to prevent ecological degradation — and anyone can enforce that right in court,"* as at Hwange.

**A skipped EIA becomes an unlawful grant.** *"The grant skipped the environmental assessment the law requires — it is unlawful."*

**A park becomes a bar.** *"This is inside a national park — mining there breaches its protection."*

**An announcement becomes a demand for enforcement.** *"The ban was announced — now cancel the titles and write it into law."*

Match it to the venue: the constitutional breach and the skipped EIA to the High Court; the park status to ZimParks and the court; the public alarm to the press; the enforcement demand to the government, kept up until it's real.

## STEP 5: MEDIA STRATEGY

In Zimbabwe, national and international attention is a real lever — the Hwange outcry made a coal grant a political liability and drew the world's eye to its elephants — and it pressures a foreign company's reputation. But under a hard government, care and safety come first.

**Lead with the park and the breach, not procedure.** Not "the EIA was skipped" but "a coal mine inside Zimbabwe's largest national park, home to forty thousand elephants, granted in secret." Use your strongest material: the park and its wildlife, the evidence of the breach caught in the act, and any court action banked.

**Work several audiences at once.** Zimbabwean press and public build the outcry; international attention reaches the park's global value and the foreign company's reputation, where they're most exposed. Make it easy: captioned photos, accurate summaries, a map, strong testimony.

**Two hard rules.** Accuracy above all — one exaggeration can discredit everything. And under a hard government, protect people — carry the fight carefully, and let organisations and conservation bodies carry the most exposed parts.

## EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything; and mind your safety.

**8A — Information request (to the EMA / government).**

*Subject: Request for the grant and EIA — [project].*

"We, residents of [place], request the grant, the EIA (or confirmation of its absence), and the approvals for [project] at [location], [inside/near a national park]. [Contact.]"

**8B — Raising the alarm (to a conservation body / ZimParks).**

*Subject: URGENT — [project] inside/near [park].*

"We report that [project] is [exploring/working] inside/near [park] at [location], apparently without the required assessment: [specifics]. We ask ZimParks and the conservation bodies to act. [Attach evidence.]"

**8C — To an environmental-law organisation (public-interest litigation).**

*Subject: Urgent constitutional case — [project] in [park].*

"[Project] threatens [park] and skipped its EIA, breaching the Constitution's environmental right. We've gathered [the grant, the breach, the harm]. We ask you to bring an urgent High Court application on the broad standing rule, as at Hwange. [Contact and evidence summary.]"

**8D — Demanding the EIA / challenging the grant.**

*Subject: Unlawful grant — no EIA — [project].*

"We, residents of [place], submit that the grant for [project] is unlawful, having skipped the required EIA and breaching the environmental right. We ask that it be halted and cancelled. [Attach evidence.]"

**8E — To the traditional leaders / community.**

*Subject: Our land and [park] — let's act together.*

"[Project] threatens [our land / park / wildlife]. We ask the traditional leaders and the community to stand with us and raise the alarm, as at Hwange. [Contact.]"

**8F — To the company / its home country.**

*Subject: Unlawful project, legal and reputational risk — [project].*

"We are the community affected by [project] at [location], inside/near a protected national park, granted without the required assessment. As at Hwange, this carries real legal and reputational risk. [Contact and evidence summary.]"

**8G — Letter to the (international) press.**

*Subject: Coal/mining granted inside Zimbabwe's [park], home to [wildlife].*

"A [mine/project] has been granted inside [park], home to [elephants/wildlife], apparently without assessment. We can provide the grant, evidence of the breach, and photographs. [Contact.]"

**8H — Pressing for enforcement.**

*Subject: Make the win real — enforce the ban / cancel the titles.*

"[The ban/ruling] was announced. We now call on the government to cancel the titles, write the ban into law, and enforce it — as Hwange still demands. [Attach the announcement/ruling.]"



## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean — and speed won Hwange — do these six things, in order:

1. **Raise the alarm and document the breach in the act (8B).**
2. **Get an environmental-law organisation to bring an urgent constitutional case (8C).**
3. **Establish the skipped EIA and the protected-area status (8D).**
4. **Mobilise the public and go national/international (8G).**
5. **Engage the traditional leaders and conservation bodies (8E).**
6. **If you win, press it into enforcement — cancel the titles, make it law (8H).**

Even lean, those six turn the Constitution into a weapon and raise the alarm — the Hwange template — and press the win into enforcement.

## WHEN THE SYSTEM IS TILTED

Zimbabwe's tools are strong, but this is a hard government, and you must plan for it.

**When the government is behind the project.** Don't assume it's hopeless — Hwange proved even this government can be turned by the Constitution and the public — but move fast through the courts and the alarm, and be careful.

**When a win is announced, not enacted.** This is the central Zimbabwean trap. Keep pressing after the announcement — for the titles cancelled, the ban written into law, the assessment enforced — because a win must be fought into enforcement.

**When mobilisation carries risk.** Under a hard government, protest can be constrained. Lean on the courts and the broad standing rule (which let organisations carry the exposed legal work), and carry public mobilisation carefully, protecting people.

**When a foreign company ignores the rules.** Document the breach, litigate the constitutional right, and expose it internationally — the Hwange companies were turned back by exactly this.

## WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Zimbabwe has serious, documented problems with the secret granting of mining and resource rights to the connected, so this matters — but tread carefully.

**How to spot it.** Grants issued quietly, without assessment or consultation; rights in protected areas to the connected; benefits to officials while communities and parks bear the harm.

**Who's supposed to guard against it.** Zimbabwe's audit and anti-corruption bodies examine public money and conduct. The **High Court** can strike an unlawful grant. **ZimParks** and the **EMA** are the guardians to press. And Zimbabwe's **environmental-law organisations, conservation bodies, and press** have exposed captured deals — as at Hwange.

**How to fight it safely.** Document precisely and factually — how the grant was made in secret, who benefits, what the Constitution and the EIA law required — and keep clear the line between what you can prove and



what you suspect. Route serious evidence to the audit bodies, the High Court, and trusted journalists rather than making risky public accusations, and protect those exposed. Pair the exposure with the constitutional case.

## INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, and fast. The documented breach and harm build your case; the constitutional right aims it; a lawyer, the public, and the traditional leaders are the muscle; the High Court, the EMA, and ZimParks press it; the alarm and attention raise the cost. Together they multiply. One at a time, or slowly, the project proceeds — and a win must then be pressed into enforcement.

**At once (days–weeks):** raise the alarm and document the breach; get an organisation to bring an urgent constitutional case; establish the skipped EIA and park status; mobilise the public.

**In the thick of it (weeks–months):** carry the litigation; engage the traditional leaders and conservation bodies; go national and international.

**The long haul (months–years):** press the win into enforcement — titles cancelled, ban made law, assessment enforced; keep the coalition alive; hold the line for a project stopped, an EIA enforced, a grant cancelled, and a ban won and enacted.

## FINAL ASSESSMENT

Stopping a destructive project in Zimbabwe can be done — even under one of the harder governments in the region, the public and a lawyer turned the Constitution into a weapon and stopped a coal mine inside Hwange within days. Hold both truths. Zimbabwe's distinctive power is real: the 2013 Constitution's justiciable right to a clean environment, and its unusually broad rule of standing that lets any person or NGO take a case to court in the public interest, wielded by organisations like ZELA together with the public alarm and the environmental-assessment process. And the constraints are real: a hard government, and wins that are often announced rather than enacted, so a victory must be fought into enforcement, carefully.

Here's the discipline that wins. Raise the alarm the moment you spot the breach, and document it in the act. Get an environmental-law organisation to turn the Constitution's environmental right into an urgent High Court application on the broad standing rule, as ZELA did — arguing the duty to prevent ecological degradation and any skipped EIA. Invoke protected-area status where it applies, mobilise the public so the project becomes a political liability, and engage the traditional leaders and conservation bodies. Then, crucially, press every win into enforcement — the titles cancelled, the ban written into law, the assessment enforced — because in Zimbabwe an announcement is not yet a law. Mind your people's safety under a hard government throughout. Count a project stopped, an EIA enforced, a grant cancelled, and a ban won and enacted as wins. That's what Hwange did — the Constitution, the public, and the courts together, pressed into enforcement. So can you.